

# On the risks of a decline in the export volume of remote US logistics services from Uzbekistan

US road logistics almost entirely passed to the private sector 40 years ago. In the early 2000s the internet covered the whole world. Software improved and accelerated processes across all industries of the economy. «Smart» electronic devices were introduced into transport and infrastructure. Interstate routes in the US were expanded and suburbs developed. Online commerce began to grow, and demand for frequent consumer deliveries increased.

These factors greatly expanded the US road freight market. Recently **72.7% of all deliveries** within the US falls specifically on road transport. The number of carrier companies reached **580 thousand**, while total employment amounted to **8.4 million people**, of which more than **3.5 million are drivers**. Almost 15 million trucks are registered. **The industry's total turnover** exceeded \$ 1 trillion in 2023, then fell to **\$ 906 billion in 2024**.

US road logistics market indicators<sup>1</sup>

| Category                                                                      | Indicator        | Period |
|-------------------------------------------------------------------------------|------------------|--------|
| Share of all shipments                                                        | 72.7%            | 2024   |
| Total turnover                                                                | \$ 906 billion   | 2024   |
| Registered tractor units                                                      | 14.9 million     | 2024   |
| Number of active carrier companies                                            | 580 thousand     | 2025   |
| Share of companies with fewer than 10 tractor units                           | 91.5%            | 2025   |
| Number of drivers                                                             | 3.58 million     | 2024   |
| Total employment <i>(incl. related services, excluding the self-employed)</i> | 8.4 million      | 2024   |
| Market size BPO                                                               | \$ 128.3 billion | 2025   |

<sup>1</sup> [Economics and Industry Data | American Trucking Associations](#)

## 1. History of US road freight transport

Until the mid-1930s, US freight transport existed with virtually no federal oversight. The only regulator in the transport sphere was the Interstate Commerce Commission (*ICC*), created back in 1887 to oversee railroads<sup>2</sup>. The road freight industry grew spontaneously; freight tariffs and routes were controlled by no one, and the accident rate remained extremely high.

The turning point was the Motor Carrier Act (*Motor Carrier Act*) of 1935. Under pressure from the railroad lobby, which feared competition from trucks, it extended ICC jurisdiction to road freight transport. New market entrants were now required to obtain a «certificate of public necessity and convenience», and freight tariffs were subject to mandatory public registration with the ICC 30 days before taking effect<sup>3</sup>.

In 1936 the first federal safety rules of the Bureau of Motor Carriers were issued, and in 1938 – the first limits on drivers' working hours<sup>4</sup>. The Reed–Bulwinkle Act of 1948 granted carriers the right to collectively set tariffs in so-called «rate bureaus», exempting them from antitrust law despite President Truman's veto<sup>5</sup>. The system lasted 45 years, turning the ICC into one of Washington's most influential regulatory bodies.

The restricted-market policy met growing criticism by the late 1970s: tariffs were inflated, routes were restricted, competition was suppressed. On 1 July 1980, President Jimmy Carter signed a new Motor Carrier Act (*Motor Carrier Act of 1980*), which eliminated most barriers to market entry and freed pricing<sup>6</sup>. By 1990 the number of licensed carriers significantly exceeded 40 thousand, which is twice as many as in 1980<sup>7</sup>. By 1985 shippers were saving about \$7.8 billion annually thanks to lower tariffs, and by 1998 carriers' operating costs had fallen by 75%<sup>8</sup>. Deregulation turned the industry

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<sup>2</sup> [congress.gov](https://www.congress.gov), [econlib.org](https://www.econlib.org)

<sup>3</sup> [congress.gov](https://www.congress.gov)

<sup>4</sup> [224-120 final Pdf.pdf](#), [Federal Motor Carrier Act of 1935](#)

<sup>5</sup> [Trucking Deregulation in the United States Submission by the United States to the Ibero- American Competition Forum \(September, 2007\)](#)

<sup>6</sup> [The Motor Carrier Act of 1980: An Analysis of the Changes](#)

<sup>7</sup> [Trucking Deregulation - Econlib](#)

<sup>8</sup> [Forty Years After Surface Freight Deregulation | The Regulatory Review](#)

into a competitive private market, but gave rise to thousands of small carriers with minimal administrative resources.

In parallel with the deregulation of economic activity, the federal government tightened safety requirements. The Surface Transportation Assistance Act of 1982 (*Surface Transportation Assistance Act*) established the MCSAP program – federal grants to states to ensure compliance with safety standards – and created a national network of truck routes<sup>9</sup>.

In 1986 the Commercial Motor Vehicle Safety Act (*Commercial Motor Vehicle Safety Act*) introduced a single national commercial driver's license (CDL)<sup>10</sup>.

In 1995 the ICC was terminated by the ICC Termination Act, and its functions were divided between the Surface Transportation Board<sup>11</sup> (*STB, the economic regulator*) and the Federal Highway Administration (*FHWA, the safety regulator*)<sup>12</sup>. On 1 January 2000, in accordance with the 1999 Motor Carrier Safety Improvement Act, the Federal Motor Carrier Safety Administration (*FMCSA*) was created – now the industry's main federal regulator<sup>13</sup>.

Since the 2000s, FMCSA has consistently introduced new oversight tools: the CSA program (*Compliance, Safety, Accountability*) was launched in 2010; the FMCSA information system for recording violations of drug and alcohol use requirements (*Drug & Alcohol Clearinghouse*) – in January 2020; mandatory electronic working-time recorders (*Electronic Logging Device, ELD*) – in December 2017 in accordance with 49 CFR Part 395<sup>14</sup>. It was precisely the introduction of mandatory ELD use that laid the basis for moving the industry's internal work processes into digital format, since driver data is now available over the internet in real time.

The mass international transfer of business processes to an external contractor (*outsource, BPO – business process outsourcing*) became possible in the 1990s, when economic liberalization in India and the Philippines opened

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<sup>9</sup> [Palace Coup: President Ronald Reagan and the Surface Transportation Assistance Act of 1982 - Federal Aid Legislation - Highway History - Federal Highway Administration](#)

<sup>10</sup> [tile.loc.gov](#)

<sup>11</sup> [The Surface Transportation Board \(STB\): Background and Current Issues | Congress.gov | Library of Congress](#)

<sup>12</sup> [S. Rept. 104-176 - INTERSTATE COMMERCE COMMISSION SUNSET ACT OF 1995 | Congress.gov | Library of Congress](#)

<sup>13</sup> [About Us | FMCSA](#)

<sup>14</sup> [2015-31336.pdf](#)

access to an English-speaking skilled workforce at prices fundamentally lower than American ones. The «Y2K crisis» in the late 1990s accelerated this process – the need for scalable teams on short notice proved the viability of the offshore model<sup>15</sup>. According to a University of California study, by 2003 India already controlled about 44% of the global BPO market for software and office functions<sup>16</sup>.

***For reference: «The Y2K crisis» is a problem of old computer systems in which the year was often indicated by the last two digits. When transitioning to 2000 there was a risk of misreading the date «00», which could have caused failures in critically important information systems. Thanks to large-scale software modernization, serious consequences were avoided. The crisis became one of the factors driving demand for external IT competencies and the development of digital-services BPO.***

For the US trucking industry, the BPO sector emerged as a direct consequence of the 1980 deregulation. The fragmentation of the market created a mass of small carriers (*91.5% of operators each manage fewer than 10 trucks<sup>17</sup>*), which lack the resources to maintain their own administrative staff. The first companies specializing in the BPO of logistics processes appeared in the US in the 1990s. In particular, DATAMARK reports more than 30 years of experience working with transport companies on processing freight bills<sup>18</sup>. The technological impetus was the widespread spread of the internet and VoIP in the 2000s, which made remote dispatch services practically indistinguishable from local ones.

Today the Philippines holds a dominant position in the BPO of logistics operations for the US. According to the IT & Business Process Association of the Philippines (*IBPAP*), in 2024 the country's BPO sector employed 1.82 million people generating \$38 billion in export revenue, a significant part of which comes from transport support<sup>19</sup>.

India specializes in high-volume process tasks – processing freight invoices and robotic automation. Colombia and Belize are actively developing the dispatch-services niche thanks to their time-zone overlap with US Eastern

<sup>15</sup> [Offshore Outsourcing to India by U.S. and E.U. Companies | UC Davis Business Law Journal](#)

<sup>16</sup> [Offshore Outsourcing to India by U.S. and E.U. Companies | UC Davis Business Law Journal](#)

<sup>17</sup> [Economics and Industry Data | American Trucking Associations](#)

<sup>18</sup> [Company | About Us | DATAMARK, Inc.](#)

<sup>19</sup> [The Continued Growth of BPO in the Philippines - 365Outsource.com](#)

and Central Time. Foreign teams cost 50–70% less than American ones with comparable quality in established processes<sup>20</sup>.

## 2. The chain of continental road freight transport in the current US logistics industry.

A single domestic full-truckload shipment (*full truckload, FTL*) usually passes through several links from the shipper to the final recipient.

**The shipper** (*also called the beneficial cargo owner, consignor, or, when a third party pays for transport on the owner's behalf, the commercial shipper*<sup>21</sup>) owns the goods and offers the cargo for transport. The cargo is stored, assembled and prepared at a **warehouse or distribution center**.

To find a truck, the shipper usually turns to an intermediary – a **freight broker**, who is defined by law as a person who, for compensation, arranges the transport of property by an authorized motor carrier<sup>22 23</sup>, or to a **third-party logistics provider (3PL)**, which performs the same function of arranging transport (*and therefore, under the law, falls within the definition of a broker when it does so*).

The intermediary hands the cargo **to the motor carrier** – a person that carries out road transport for compensation<sup>24</sup>, – whose dispatch function assigns it **to a driver**, who transports the cargo and signs the documents. The cargo is handed **to the consignee or the end customer**, who confirms delivery with a special proof-of-delivery document – **POD** (*Proof of Delivery*).

When smaller shipments are combined in a single transit, a **freight forwarder** may appear in the chain. It collects and consolidates shipments, assumes carrier liability, and issues its own bill of lading **BOL** (*Bill of Lading*). In this case the forwarder legally acts simultaneously as the receiving and delivering carrier and bears carrier liability under the Carmack Amendment (*Carmack Amendment*)<sup>25 26</sup>. For import cargo, a **customs broker** is added, licensed by **the U.S. Customs and Border Protection** (*U.S. Customs and Border Protection, CBP*) for customs control of cargo through **CBP**<sup>27 28</sup>.

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<sup>20</sup> [Top 5 Offshoring Destinations for US Freight and Logistics](#)

<sup>21</sup> <https://www.law.cornell.edu/cfr/text/49/375.103>

<sup>22</sup> <https://www.law.cornell.edu/uscode/text/49/13102>

<sup>23</sup> <https://www.law.cornell.edu/cfr/text/49/371.2>

<sup>24</sup> <https://www.law.cornell.edu/uscode/text/49/13102>

<sup>25</sup> [law.cornell.edu](http://law.cornell.edu)

<sup>26</sup> [law.cornell.edu](http://law.cornell.edu)

<sup>27</sup> [law.cornell.edu](http://law.cornell.edu)

<sup>28</sup> [cbp.gov](http://cbp.gov)

In parallel with the physical movement, there is an **internal operational layer** of business-process functions (*back office*) that affects every link. This includes booking cargo and confirming rates, dispatch and after-hours service, carrier onboarding/verification support, cargo tracking (*«check calls»*), document management (*processing bills of lading and PODs*), as well as calculating and processing payments, invoicing, auditing freight bills, accounting, and settlements.

These functions are designated here as «BPO», and most of them are performed remotely<sup>29 30 31</sup>. The **early payment for completed shipments through factoring companies** (*freight factoring*) service allows a carrier to sell its unpaid invoices in exchange for an advance (*within 24 hours*), to cover a 30–90 day payment delay.<sup>32</sup>

### The chain of continental road freight transport in the US

| Participant                             | Role                                                                                                                                                    | Place in the chain                                  | Location                                       |
|-----------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------|------------------------------------------------|
| <b>Shipper (BCO)</b>                    | Owns the cargo and offers it for transport; listed as shipper or consignee on the bill of lading <sup>33</sup> .                                        | Start of the chain                                  | Domestic                                       |
| <b>Warehouse operator</b>               | Receives, stores, assembles, prepares and loads the cargo; manages inventory.                                                                           | Between the shipper and transport                   | Domestic ( <i>physically</i> )                 |
| <b>3PL (third-party logistics)</b>      | Arranges and manages logistics services for shippers; when arranging transport for compensation, acts within the definition of a broker.                | Intermediary                                        | Head office domestic; back office often abroad |
| <b>Freight broker</b>                   | For compensation, arranges transport by an authorized motor carrier; registered with FMCSA and backed by a surety bond (\$75,000) <sup>34 35 36</sup> . | Intermediary ( <i>between shipper and carrier</i> ) | Domestic, abroad ( <i>regulated</i> )          |
| <b>Freight forwarder</b>                | Collects and consolidates shipments, assumes carrier liability, issues its own bill of lading; carrier liability applies <sup>37 38</sup> .             | Intermediary / consolidator                         | Domestic ( <i>regulated</i> )                  |
| <b>Motor carrier with its own fleet</b> | Carries out road transport for compensation; operates trucks and hires drivers on an employment/contract basis <sup>39</sup> .                          | Line-haul transport                                 | Domestic ( <i>regulated</i> )                  |
| <b>Owner-operator</b>                   | An independent long-haul trucker who owns the vehicle and either holds their own authority or works under lease to a carrier <sup>40</sup> .            | Line-haul transport                                 | Domestic                                       |

<sup>29</sup> [freightwaves.com](http://freightwaves.com)

<sup>30</sup> [trans.uz](http://trans.uz)

<sup>31</sup> [superstaff.com](http://superstaff.com)

<sup>32</sup> [geotab.com](http://geotab.com)

<sup>33</sup> [law.cornell.edu](http://law.cornell.edu)

<sup>34</sup> [law.cornell.edu](http://law.cornell.edu)

<sup>35</sup> [law.cornell.edu](http://law.cornell.edu)

<sup>36</sup> [prepass.com](http://prepass.com)

<sup>37</sup> [law.cornell.edu](http://law.cornell.edu)

<sup>38</sup> [law.cornell.edu](http://law.cornell.edu)

<sup>39</sup> [law.cornell.edu](http://law.cornell.edu)

<sup>40</sup> [ooida.com](http://ooida.com)



| Participant                                                | Role                                                                                                                                                                                                                     | Place in the chain                         | Location                       |
|------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------|--------------------------------|
| <b>Dispatch service</b>                                    | Books cargo and coordinates work on the carrier's behalf; lawful as a bona fide agent of the carrier, but acts as a broker ( <i>and must register</i> ) if it arranges transport for several carriers <sup>41 42</sup> . | Back office around the carrier             | Often abroad                   |
| <b>Freight exchange</b>                                    | An electronic platform that matches available loads and trucks for a fee <sup>43</sup> .                                                                                                                                 | Platform at the cargo-handover stage       | Platform domestic              |
| <b>Factoring company</b>                                   | Buys a carrier's unpaid invoices at a discount and advances funds ( <i>often within 24 hours</i> ) <sup>44</sup> .                                                                                                       | Payment for transport                      | Domestic                       |
| <b>Customs broker</b>                                      | Licensed by CBP to conduct customs activities and clear import cargo <sup>45 46</sup> .                                                                                                                                  | Import stage                               | Domestic ( <i>licensed</i> )   |
| <b>«Last-mile» carrier</b>                                 | Serves the last leg to the consignee/end customer, often for parcels and oversized goods.                                                                                                                                | End of the chain                           | Domestic ( <i>physically</i> ) |
| <b>Cargo insurer</b>                                       | Provides cargo and liability insurance; carriers/brokers must meet minimum financial-responsibility levels <sup>47</sup> .                                                                                               | Risk-management layer ( <i>all links</i> ) | Domestic ( <i>regulated</i> )  |
| <b>Carrier-vetting / fraud-prevention service provider</b> | Vets carriers against FMCSA data ( <i>e.g., SAFER</i> ) and its own signals before handing over the cargo <sup>48</sup> .                                                                                                | Onboarding / cargo handover                | Tools domestic                 |
| <b>Offshore back-office BPO provider</b>                   | Remotely performs dispatch, tracking, document management, billing, accounting and support for US carriers/brokers <sup>4950</sup> .                                                                                     | Covers the entire chain                    | Offshore                       |

### 3. The legal framework of the US road logistics sector

The legal framework of US road logistics rests on several successive legal layers of regulation. Each subsequent layer fully replaces or reworks the previous one.

Before 1935, interstate continental road freight transport was not established in legislation. In 1935 Congress passed the Motor Carrier Act. Through this law a system was established in which the Interstate Commerce Commission (*ICC*) restricted new entrants to the industry, approved certain routes, and required freight-rate schedules and their terms of application to be officially registered with the regulator 30 days before they took effect<sup>51</sup>.

<sup>41</sup> [federalregister.gov](https://www.federalregister.gov)

<sup>42</sup> [law.cornell.edu](https://www.law.cornell.edu)

<sup>43</sup> [ccjdigital.com](https://www.ccjdigital.com)

<sup>44</sup> [geotab.com](https://www.geotab.com)

<sup>45</sup> [law.cornell.edu](https://www.law.cornell.edu)

<sup>46</sup> [cbp.gov](https://www.cbp.gov)

<sup>47</sup> [law.cornell.edu](https://www.law.cornell.edu)

<sup>48</sup> [safer.fmcsa.dot.gov](https://safer.fmcsa.dot.gov)

<sup>49</sup> [freightwaves.com](https://www.freightwaves.com)

<sup>50</sup> [trans.uz](https://trans.uz)

<sup>51</sup> [Trucking Deregulation in the United States Submission by the United States to the Ibero- American Competition Forum \(September, 2007\)](#)

Following this, in 1948 the Reed–Bullwinkle Act was passed because of antitrust suits over collective price-setting. The law allowed rate bureaus operating in agreement with the ICC to set transport tariffs. As a result, virtually all carriers were assigned to such rate bureaus, and customers paid exclusively the inflated prices set by the rate bureau<sup>52</sup>.

The turning point for the industry was the 1980 Motor Carrier Act, which deregulated the industry toward free-market conditions. This helped avoid the monopolistic nature of price-fixing. The effect of this law proved significant, was confirmed by independent studies, and was reflected in a report by the FTC (*Federal Trade Commission*).

Thus, the average tariff for transporting standard-volume TL (*truckload*) cargo fell by 25% over 1977–1982. The average tariff for below-standard-volume LTL (*less than truckload*) cargo fell by 12% over the same period despite a doubling of fuel prices.

The number of small TL carriers grew from 20 thousand in 1980 to 55 thousand by 1995. The net benefit of deregulation was estimated at more than \$18 billion in 1996 terms. Industry employment grew by almost 30% in the seven years from 1980. Operating costs per mile of TL transport fell by at least 75%<sup>53</sup>.

This period marked the direct start of US freight-logistics BPO as a new market category. The broker role emerged, which today makes up the largest part of all industry sectors available for outsourcing.

In 1995 the ICC Termination Act was passed (*ICC Termination Act of 1995, H.R.2539*). The ICC's powers were transferred to the Surface Transportation Board (*Surface Transportation Board, STB*). The STB became a structural division of the Department of Transportation (*Department of Transportation, DOT*). The law clarified the term «carrier», extending it to the motor carrier, water carrier, and freight forwarder, and gave the Secretary of Transportation and the Board jurisdiction over these entities.<sup>54</sup>

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<sup>52</sup> [Trucking Deregulation in the United States Submission by the United States to the Ibero- American Competition Forum \(September, 2007\)](#)

<sup>53</sup> [Trucking Deregulation in the United States Submission by the United States to the Ibero- American Competition Forum \(September, 2007\)](#)

<sup>54</sup> [Statement on Signing the ICC Termination Act of 1995 | The American Presidency Project](#)



This law laid the basis for the current system of registering brokers, carriers, and forwarders, codified in Title 49 of the United States Code (*49 U.S.C. § 13901*)<sup>55</sup>. Subsection (a) of §13901 states directly: a person may carry out transport as a motor carrier... or provide services as a freight forwarder... or as a broker in transport... only if that person is registered under this chapter.

The Moving Ahead for Progress in the 21st Century Act (*Moving Ahead for Progress in the 21st Century Act, MAP-21*) in 2012<sup>56</sup> amended §13901, generally overhauling the registration-number system<sup>57</sup>, establishing a requirement to assign a distinctive registration number indicating the type of transport or service – the legislative predecessor of current efforts to consolidate USDOT numbers under the Motus system.

#### 4. Key governing agencies

Today's regulatory chain is divided between economic and registration oversight and safety oversight – a division created directly by the 1995 law.

**FMCSA** (*Federal Motor Carrier Safety Administration*) – the main regulator of the day-to-day activities of every entity in the physical chain of US road freight transport. This includes motor carriers, brokers, forwarders, and, increasingly, foreign dispatch services. Its key task is to prevent accidents, deaths and injuries involving commercial trucks and buses.

**FMCSA** develops safety and regulatory standards for commercial driver's licenses, analyzes data, funds research, and carries out oversight and outreach. FMCSA administers registration (*through the new Motus system*), CDL standards, drivers' hours-of-service regime (*Hours of Service*), requirements for electronic recorders (*ELD*) and brokers' financial-responsibility rules<sup>58</sup>.

**STB** (*Surface Transportation Board*) was created by the 1995 ICC Termination Act as an independent dispute-resolution body within DOT. The STB retains jurisdiction over certain economic-regulation matters of surface transport – primarily rail, but also non-contiguous domestic trade (*transport to Alaska and Hawaii*) and the reasonableness of tariffs for

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<sup>55</sup> [49 U.S. Code § 13901 - Requirements for registration | U.S. Code | US Law | LII / Legal Information Institute](#)

<sup>56</sup> [PUBL141.PS](#)

<sup>57</sup> [49 U.S. Code § 13901 - Requirements for registration | U.S. Code | US Law | LII / Legal Information Institute](#)

<sup>58</sup> [FMCSA Issues Final Guidance Clarifying Broker and Bona Fide Agents Definitions | FMCSA](#)

household-goods transport, which remain subject to STB review even after general deregulation.

FMCSA and STB are both located within the DOT structure (*Department of Transportation*). In addition, DOT implements cross-cutting initiatives not directly attributable to any single subordinate body – primarily the **Freight Logistics Optimization Works**<sup>59</sup> (*FLOW*) program, a public-private data-sharing partnership.

**FLOW** collects data on supply orders from importers, as well as data on logistics supply, demand and capacity from participants – including shippers, ocean carriers, ports, terminals and railroads – while the Bureau of Transportation Statistics anonymizes and aggregates this data before returning it to participants. DOT's own materials directly assert a significant degree of private-sector management of road freight transport.

**DOJ** (*Department of Justice*) occupies a structurally unusual role. It is not a regulator of the trucking industry as such, but has become *the only* body authorized to impose civil penalties for violations of FMCSA commercial rules – following a 2019 ruling unfavorable to FMCSA. This makes DOJ a de facto co-regulator in enforcement against illegal brokerage and freight fraud – a role they intend to enshrine in law in the near future.

**OIG** (*Office of the Inspector General of the Department of Transportation*) serves as a criminal-investigation channel separate from DOJ's civil role. FMCSA's own July 2024 report to Congress<sup>60</sup> indicates that OIG referred to DOJ cases with numerous victims of moving fraud for further investigation and possible indictment, and that OIG worked jointly with DOJ to indict company officials, which led to convictions and imprisonment.

| Agency       | Role                                                                                 | Legal/structural basis                                         |
|--------------|--------------------------------------------------------------------------------------|----------------------------------------------------------------|
| <b>FMCSA</b> | Primary registration, safety, CDL, ELD, HOS, broker regulation                       | Created within the system established by the ICC abolition act |
| <b>STB</b>   | Rail economics; review of tariffs for household goods and non-contiguous territories | 1995 ICC abolition act, Title II                               |

<sup>59</sup> [Freight Logistics Optimization Works | US Department of Transportation](#)

<sup>60</sup> [Unlawful Brokerage Activities Report to Congress Final July 2024.docx](#)

|            |                                                                           |                                                                                                                    |
|------------|---------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------|
| <b>DOT</b> | Cross-cutting freight data and policy (FLOW); unites the two bodies above | Parent structure of transport oversight                                                                            |
| <b>DOJ</b> | The only body imposing civil penalties for FMCSA violations after 2019    | Riojas court case, 2019                                                                                            |
| <b>OIG</b> | Criminal investigation and referral of fraud cases                        | FMCSA–OIG cooperation practice; to be enshrined in the draft SAFER Transport Act via a memorandum of understanding |

## 5. Current changes in US legislation

FMCSA's own July 2024 report to Congress precisely identifies the starting point: in 2019 an administrative law judge of the Department of Transportation ruled in the case «*Darlene Riojas et al.*», case No. FMCSA-2012-0174, that FMCSA lacks the legal authority to administratively adjudicate and impose civil penalties for violations of Part «B» of Subchapter IV of Title 49 – including the broker rules – and that FMCSA must instead seek adjudication in federal district court.

FMCSA describes this legal gap as follows: the need to refer cases to DOJ to impose civil penalties for violations of commercial rules creates a significant barrier to enforcement, including cases of illegal brokerage. Until the regulated entity voluntarily remedies the violation, FMCSA must refer the case to DOJ for further enforcement.

Before the Riojas ruling, FMCSA issued about 20 claim notices (*Notices of Claim*) between 2014 and 2019 for illegal brokerage under 49 U.S.C. § 14916. After Riojas, the agency retained only notices of violation (*without a fine*) and letters of probable violation (*they propose a fine but require further DOJ follow-up if the broker does not resolve the matter voluntarily*).

The agency's own conclusion, quoted verbatim from the report: «*The agency believes that revising its statutory provisions to clearly grant FMCSA legal authority to administratively impose civil penalties for illegal brokerage is necessary and appropriate*»<sup>61</sup>.

<sup>61</sup> [Unlawful Brokerage Activities Report to Congress Final July 2024.docx](#)

This report is the key document for understanding why the legislation discussed below exists. It is Congress's response to the regulator's own official request to grant it legislative powers it currently lacks.

FMCSA's Motus registration system (*Motus: USDOT Registration System*<sup>62</sup>) has advanced beyond its phased rollout. Motus is now open to **all** entities that require a USDOT number or operating authority, including motor carriers, brokers, forwarders, intermodal equipment operators (*companies providing container chassis and other equipment for combined transport*) and tank-transport facilities, as well as auxiliary companies such as BOC-3 filers and insurance/surety companies. FMCSA describes this as an important step forward in its efforts to strengthen oversight, reduce fraud, and improve efficiency. Identity verification via Login.gov is now a mandatory first step for any registrant.

For external BPO companies, this means that any foreign dispatch entity that ultimately falls under the requirement for broker registration will register precisely through this system and will fall under the same identity-verification infrastructure that applies today to domestic entities.

From 16 March 2026, only holders of «H-2A», «H-2B» and «E-2» non-immigrant visas are eligible for a non - resident CDL. To verify lawful immigration status, states must send queries to the SAVE system (*Systematic Alien Verification for Entitlements*), administered by USCIS (*U.S. Citizenship and Immigration Services*). The validity of a CDL for such persons is limited to one year. States that do not comply with these requirements must fully suspend issuance of licenses<sup>63</sup>.

Bill **H.R. 8267/S. 3950** known as SAFER (*Securing American Freight, Enforcement, and Reliability in Transport Act*<sup>64</sup>), is under consideration to add a new provision to Chapter 49 **§13910**, stating verbatim: «*A person acting as a foreign dispatch service must register as a broker*».

The bill's precise legal definition of a «foreign dispatch service» (*an amendment to §13102*) covers a person that:

- a) is not located within the US, Mexico or Canada;

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<sup>62</sup> [Move into Motus | FMCSA](#)

<sup>63</sup> [Non-Domiciled CDL 2026 Final Rule FAQs | FMCSA](#)

<sup>64</sup> [Text - H.R.8267 - 119th Congress \(2025-2026\): SAFER Transport Act | Congress.gov | Library of Congress](#)

- b) has its principal place of business or substantial operations in a foreign country;
- c) acts as a direct licensed agent on behalf of one or more motor carriers under a formal written agreement;
- d) receives compensation from these motor carriers on the basis of a pre-established written legal contract;
- e) provides exclusively administrative or auxiliary services limited to coordinating the movement of cargo without assuming liability for the cargo, and communicates through a broker to arrange transport on behalf of the motor carrier; and
- f) does not engage in soliciting or attracting shippers.

Mexico and Canada are explicitly excluded from the definition of «foreign», which means this provision targets specifically entities outside North America. In effect, the bill's only additional variable – geographic location – is what would deprive such an entity of this protection.

Separately, the bill provides for the creation of a Freight Fraud and Theft Advisory Committee (*Freight Fraud and Theft Advisory Committee*) and requires a memorandum of understanding between the Secretary of Transportation and the Attorney General to formalize the procedure for sharing freight-fraud information between DOT and DOJ – a direct legislative response to the coordination gap that FMCSA itself identified in its 2024 report. The bill would also give a legislative basis to the transition from MC numbers to USDOT numbers, instead of relying solely on FMCSA's administrative rollout of the Motus system.

The CORCA (*Combating Organized Retail Crime Act*) of 2025 broadens the range of acts qualifying as federal crimes in the interstate transport of stolen property, allows criminal cases to be brought based on the aggregate value stolen over a 12-month period, permits these acts to serve as grounds for federal money-laundering cases, and allows criminal forfeiture of property. The bill is now in the Senate together with S.1404, where it remains in the Judiciary Committee since April 2025, despite a decisive House vote.

ATA (*American Trucking Association*) President Chris Spear stated in support of this bill that cargo thieves steal \$18 million from the trucking industry every day.

The tightening of regulation described above is taking place against a significant decline in the profitability of carrier operations. This trend is independently confirmed by ATRI's 2025 report. According to the report, the average cost of operating a truck in 2024 was \$2.26 per mile. Excluding fuel costs, marginal operating expenses rose by 3.6% and reached \$1.78 per mile. This is the highest figure for the entire period of ATRI observations.

The average operating margin did not exceed 2% in almost all market segments. The only exception was less-than-truckload (*LTL*). In the full-truckload (*TL*) segment, the average operating margin was minus 2.3%.

In response to rising costs, some carriers cut administrative and support staff by 6.8%. This figure is direct quantitative confirmation of mounting cost pressure. Under such conditions, outsourcing individual functions becomes an economically justified decision.

A similar trend is confirmed by Armstrong & Associates data for 2025. According to it, the market for outsourced logistics services (*3PL*), in the US in 2025 reached \$ 323.4 billion. Compared with the previous year, the market grew 5.0 %.

Thus, demand for BPO services continues to grow despite the declining profitability of carrier operations. This indicates that the use of external service providers is becoming not an additional tool for improving efficiency, but one of the sustainable ways to reduce costs.

## **6. Criminal schemes and fraud in the US road freight industry.**

After the pandemic boom, the US road freight market entered a prolonged downturn, and it was precisely its economics – excess capacity and rates below the cost of legal operation – that created fertile ground for a surge in fraud and cargo theft<sup>65</sup>. As small carriers left en masse, minimally trained drivers flooded in, and with the regulator's limited powers, crime shifted from «street» theft to strategic theft – through deception, identity substitution and cyberattack.

It is not so much the number of incidents that is growing as their «cost». According to Verisk CargoNet, with the number of events almost unchanged in 2025, estimated losses reached nearly \$725 million –

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<sup>65</sup> [otr.solutions.com](https://otr.solutions.com)



60% more than a year earlier<sup>66</sup>. Below are the industry's main problems, the typology of schemes, the most vulnerable links in the chain, and key figures.

The current downturn began in April 2022 and became one of the longest in the industry's history. During the pandemic, the number of «for-hire» carriers grew from about 241 thousand in June 2020 to more than 475 thousand by July 2023 – growth of almost 96%, flooding the market with capacity<sup>67</sup>. When transport demand fell, spot-market rates dropped below carriers' cost levels. According to ATRI, the average cost of a trip in 2024 reached \$2.26 per mile, while spot rates were around \$1.80–1.90<sup>68</sup> per mile. Thousands of small carriers and single operators, working at or below cost, left the market, and the revocation of operating authority sharply accelerated<sup>69</sup>.

Against this backdrop, a persistent set of problems emerged, hitting brokers, carriers, owner-operators and shippers differently:

A) Excess capacity and dumping. Below-cost rates squeeze out honest carriers and push part of the market toward risky practices<sup>70</sup>.

B) A surge in fraud and cargo theft. Economic pressure coincided with organized groups shifting to high-yield deception schemes<sup>71</sup>.

C) Non-resident licenses (*non-domiciled CDL*) and «CDL mills». After a series of fatal accidents – including a high-profile crash in Florida in August 2025 involving a driver with a non-domiciled CDL and poor English – FMCSA launched a campaign against «CDL mills», removing more than 7 thousand schools from the training registry<sup>7273</sup>; a new rule sharply restricted the issuance of such licenses<sup>74</sup>.

D) Payment risk and non-payment. «Bad brokers», through non-payment and double-brokering, drained more than \$10 billion from the industry over 2022–2025 by industry estimates; over the same period FMCSA revoked 15,419 broker authorities<sup>75</sup>.

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<sup>66</sup> [verisk.com](https://www.verisk.com)

<sup>67</sup> [otrsolutions.com](https://www.otrsolutions.com)

<sup>68</sup> [otrsolutions.com](https://www.otrsolutions.com)

<sup>69</sup> [tanktransport.com](https://www.tanktransport.com)

<sup>70</sup> [tanktransport.com](https://www.tanktransport.com)

<sup>71</sup> [verisk.com](https://www.verisk.com)

<sup>72</sup> [truckinginfo.com](https://www.truckinginfo.com)

<sup>73</sup> [overdriveonline.com](https://www.overdriveonline.com)

<sup>74</sup> [truckdispatchexperts.com](https://www.truckdispatchexperts.com)

<sup>75</sup> [transportationrecovery.com](https://www.transportationrecovery.com)

E) Counterparty-vetting burden. Registries are outdated and vulnerable to forgery, so verification falls on the companies themselves. FMCSA advises treating MC/USDOT data like banking data and re-checking even insurance certificates<sup>76</sup>.

F) Vulnerability to cyberattacks. Business-email compromise, fake emails, phone-number spoofing and the creation of fictitious identities allow fraudsters to impersonate genuine transport participants and reroute cargo<sup>77</sup>.

G) Transport insurance is becoming more expensive. Although the mandatory insurance-coverage amount has remained at \$750 thousand since 1985, large court payouts – averaging about \$51 million in the most severe cases – force insurers to raise policy prices and be more cautious in selecting clients<sup>78</sup>.

H) Enforcement gaps. After the DOT ruling in the Riojas case (2019) FMCSA is deprived of the right to impose civil fines for unlicensed brokerage administratively and must refer cases to DOJ; the agency asks Congress to restore these powers<sup>79</sup>.

Modern freight fraud is primarily deception, not forcible seizure. NICB directly links the rise in theft to digitalization: fictitious pickups, sham carriers and cyber-manipulation of logistics<sup>80</sup>. The key schemes can be ranked as follows:

**Double-brokering** – the unauthorized transfer of cargo to another carrier without the shipper's knowledge. The most widespread type of crime in the industry. The number of complaints at Truckstop grew by 400% over late 2022 – early 2023<sup>81</sup>.

The process begins with the fraudster adopting the guise of a «fictitious carrier». To do this, the perpetrators steal the MC and DOT license numbers of legitimate transport companies that have a long history and a good market rating but have currently reduced their activity. When the original cargo owner or first legitimate broker posts a load, the fraudster, using this stolen data, presents themselves as a reliable carrier. The parties digitally sign an agreement (*Broker-Carrier Agreement*), and the fraudster receives a rate confirmation (*Rate Confirmation*). At this point the cargo is officially assigned

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<sup>76</sup> [fmcsa.dot.gov](https://www.fmcsa.dot.gov)

<sup>77</sup> [nicb.org](https://www.nicb.org)

<sup>78</sup> [truckdispatchexperts.com](https://www.truckdispatchexperts.com)

<sup>79</sup> [truckinginfo.com](https://www.truckinginfo.com)

<sup>80</sup> [nicb.org](https://www.nicb.org)

<sup>81</sup> [truckstop.com](https://www.truckstop.com)

to the fraudster, and the original customer believes their goods are in reliable hands.

Having secured the cargo, the fraudster must find a real driver to deliver it. However, reselling the cargo through the carrier profile may raise suspicion in the system. So at this stage the fraudster steals the data of another company – a reputable, solvent and legitimate broker. Creating fake emails and clone sites, the fraudster, posing as this trusted broker, posts the load on logistics platforms (*Load Boards, such as DAT or Truckstop*) at a lower rate. The real driver, seeing the load, contacts the fraudster in full confidence that they are working with a reputable broker. A completely new, second agreement (*Broker-Carrier Agreement*), is signed between them, and the driver is given a fake Rate Confirmation with a reduced price. To hide the original customer's data, the fraudster tells the driver this is a «blind shipment» (*Blind Shipment*), and instructs them to introduce themselves at the warehouse with the name of the fictitious carrier from the first stage.

When the real driver arrives at the warehouse and gives the specified name, warehouse staff see a match with the system record, release the cargo, and the driver signs the bill of lading – BOL (*Bill of Lading*). After successful delivery to the destination, the driver receives from the consignee a stamped document confirming delivery – POD (*Proof of Delivery*), and sends it to the fictitious broker (*the fraudster*) to receive payment for their services. The fraudster, in turn, attaches this genuine proof of delivery to their invoice and sends it to the very first, original customer. Seeing that the cargo has been delivered, the customer transfers payment to the fraudster's account. After this the perpetrator cuts off all contact and disappears, and the real driver is left without payment for their work.

The successful operation of this scheme is due to a number of legal and technical gaps in the system. Most importantly, there is no direct link between the original customer and the real driver. Each of them concludes separate, unconnected contracts with the fraudster. FMCSA databases and electronic signatures allow documents to be confirmed in minutes without visual identity verification, which gives the stolen data the appearance of full legitimacy.

When the affected driver turns to the authorities or to the real broker whose name was used, the case is often qualified not as criminal fraud but as a breach of contractual obligations (*a civil dispute*). Moreover, if the cargo is damaged in transit, the real driver's insurance may not cover the loss, since

legally they accepted the cargo from a party that had no legal right to it.

**For reference:** in the FTC case against California broker Apex Freight Services (2018), the intermediary accepted payment from shippers but did not deliver the cargo and did not pay the carriers. The company settled the charges by paying \$500 thousand.<sup>82</sup>

**Strategic theft (theft-by-deception)** – the cargo is «lawfully» received and taken away using deception on the side of the supplier, broker or carrier<sup>83</sup>.

The process begins with the perpetrators illegally obtaining precise trip details: the names of brokers and drivers, staff contacts, and bill-of-lading numbers. As soon as the legitimate driver picks up the cargo, the fraudsters contact them on behalf of the real broker or customer. Operating with genuine data, they inspire full trust and, under a convincing pretext (*for example, an urgent change in the client's plans or an overcrowded warehouse*) instruct them to change the route.

The driver, accustomed to frequent changes in logistics, usually does not re-check the information through official channels and arrives at a bogus warehouse rented by the criminals for a short term. After the goods are voluntarily unloaded, the fraudsters quickly transfer them to their own vehicles and disappear. The deception is revealed only when the real recipient begins searching for the missing cargo. The success of this scheme is due to the fact that historically all security control is concentrated at the document-verification stage when concluding the contract. Once the cargo is already in transit, control weakens, and the professional use of real names and terminology easily lulls the vigilance of drivers and dispatchers<sup>84</sup>.

**For reference:** in a case brought by the Manhattan District Attorney in June 2026, eight defendants, using stolen shipment data, rerouted «lawfully» transferred cargo and removed goods worth about \$4.49 million<sup>85</sup>.

**Identity theft** of the carrier and broker and impersonating them – using others' MC/USDOT, forged DOT records, and look-alike domains<sup>86</sup>. The process begins with «hijacking» the real MC and USDOT license numbers of active

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<sup>82</sup> [grantthornton.com](https://www.grantthornton.com)

<sup>83</sup> [nicb.org](https://www.nicb.org)

<sup>84</sup> [verisk.com](https://www.verisk.com)

<sup>85</sup> [freightwaves.com](https://www.freightwaves.com)

<sup>86</sup> [fmcsa.dot.gov](https://www.fmcsa.dot.gov)

market participants. To bypass security checks, the perpetrators forge registration documents (*DOT records*) and create clone sites with look-alike domains and fake email addresses that are visually almost indistinguishable from the original company's official contacts.

Using this fake but legitimate-looking digital storefront, the criminals contact customers under someone else's name and freely book and then pick up cargo onto bogus trucks. Because automated checks against logistics databases show the real company's impeccable history and good ratings, the security system does not detect the trick. As a result of the deception, both the shipper who lost their goods and the legitimate carrier or broker whose details were stolen become double victims – it is in the latter's name that financial claims for the missing cargo subsequently fall along with reputational damage.

**For reference:** on 3 June 2026, Manhattan DA Alvin Bragg indicted eight people (case IND-71638-26): impersonating real carriers – Viking Transport, Z Mile Inc, Altex Logistics, Preston Deliveries, Masters Trucking – they stole from warehouses in New Jersey, Pennsylvania and Virginia consignments of lamb, cheese, beef, copper and cigarettes worth about \$4.49 million; CargoNet took part in the investigation<sup>8788</sup>.

**Fictitious pickup** – coordinating a fake carrier's arrival at a warehouse under someone else's name<sup>89</sup>. A fake carrier arrives at the warehouse under a legitimate company's name and takes the cargo away (*unlike direct theft from a parking lot or trailer*). To remain unnoticed longer, the criminals forge documents and re-issue the accompanying paperwork.

**For reference:** In the same Manhattan scheme, the defendants rented tractors, put a real carrier's name and registration number on them, and picked up cargo: thus on 3 February 2026, from a warehouse in Newark (New Jersey), posing as Viking Transport, they removed 43,100 pounds of copper rod<sup>9091</sup>.

**«Phantom» carriers and «chameleon» carriers** – new legal entities masking prior violations. Complex schemes are often built through buying up carriers with a «good history»<sup>92</sup>. A carrier with a bad violation history closes down and immediately reopens under a new name and a new DOT number,

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<sup>87</sup> [manhattanda.org](http://manhattanda.org)

<sup>88</sup> [freightwaves.com](http://freightwaves.com)

<sup>89</sup> [nicb.org](http://nicb.org)

<sup>90</sup> [manhattanda.org](http://manhattanda.org)

<sup>91</sup> [freightwaves.com](http://freightwaves.com)

<sup>92</sup> [overdriveonline.com](http://overdriveonline.com)

«zeroing out» the past (*so-called «reincarnation»*). Such carriers are about three times more likely to be involved in serious and fatal accidents, and complex thefts are often built through buying legal entities with a «clean» transport history.

***For reference:*** after a fatal accident with four dead on 3 February 2026 on Indiana state highway SR-67 in Jay County<sup>93</sup> FMCSA linked the crash to a whole network of «chameleons» and shut down AJ Partners along with affiliated KG Line Group, Tutash Express, RPM Hauling and Valcins Trucking. The driver was a non-resident (Bekzhan Beishekeev, a citizen of Kyrgyzstan illegally present in the US; the CDL had been wrongfully issued to him by the state of Pennsylvania), and he was trained by a fictitious driving school<sup>94</sup>.

**Business-email compromise** and account takeover – last-minute substitution of payment details and delivery address<sup>95</sup>. The perpetrators hack or spoof the mailboxes of brokers and carriers and at the last moment change payment details or the delivery address. Taking over a real account allows correspondence to be conducted from a trusted mailbox, so «sender-address» checks do not work.

***For reference:*** in the Manhattan case, a broker believed a phishing email that they took for a message from a frequently used carrier; after this a hacker group obtained the rate data, and a consignment of cheese was rerouted<sup>96</sup>. A similar forged letter from a «financial director» also started the attack on Arup<sup>97</sup>.

**Credential compromise** on load boards – posting fake orders and taking real ones under someone else's name<sup>98</sup>. Having seized the account of a real broker or carrier, the perpetrators act in two main directions. First, they post fake orders in the name of the hacked company, whose main goal is to extract from responding legitimate carriers their confidential details or advance payments. Second, the fraudsters use the stolen profile to intercept and book real, high-paying loads for the purpose of subsequently stealing them.

In addition to direct theft of cargo and money, hacked accounts on load boards serve criminals as a convenient platform for reconnaissance. Analyzing the platforms' closed data, the perpetrators track others' logistics chains

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<sup>93</sup> [overdriveonline.com](https://overdriveonline.com); [truckdrivers.life](https://truckdrivers.life)

<sup>94</sup> [truckdrivers.life](https://truckdrivers.life)

<sup>95</sup> [nicb.org](https://nicb.org)

<sup>96</sup> [freightwaves.com](https://freightwaves.com)

<sup>97</sup> [cnn.com](https://cnn.com)

<sup>98</sup> [fmcsa.dot.gov](https://fmcsa.dot.gov)



and deliberately look for the most expensive shipments to organize future planned crimes.

***For reference:** the Manhattan group used shipment data stolen by a hacker «syndicate team» to find and intercept cargo<sup>99</sup>; CargoNet separately notes that the perpetrators analyze publicly available board data, choosing high-value targets<sup>100</sup>.*

**Forged documents** – BOL, POD, and rate confirmations<sup>101</sup>. Criminals fabricate these documents to achieve three main goals: confirming a non-existent loading to illegally obtain a fuel advance, masking theft of part of the goods in transit, or successfully impersonating a legitimate broker using fake credentials.

In practice the scheme is often used to extract money before the trip begins. The perpetrators provide the customer with a fake BOL, which serves as «proof» that the cargo has supposedly already been loaded, and obtain a fuel advance.

A separate, more complex variety is the «false claims» scheme. In this case, at the loading stage the driver is not allowed to inspect the sealed trailer, forcing them to «blindly» sign documents for the declared number of packages. As a result, the shortage originally planned by the perpetrators is discovered only at unloading, and all legal and financial liability for the missing goods falls on the deceived carrier who signed.

**Social engineering and new AI deepfakes / voice imitation** – context-precise approaches imitating brokers and dispatchers<sup>102</sup>. Calls, emails, and video calls imitate familiar brokers and dispatchers. Voice cloning and real-time video deepfakes devalue the «I recognized his voice/face» check, while the technology itself is becoming cheaper and more accessible.

***For reference:** in January 2024 an employee of Arup's Hong Kong office joined a video call with a «financial director» and «colleagues» who turned out to be deepfakes, and made 15 transfers totaling about \$25.6 million, which were*

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<sup>99</sup> [freightwaves.com](https://freightwaves.com)

<sup>100</sup> [verisk.com](https://verisk.com)

<sup>101</sup> [fmcsa.dot.gov](https://fmcsa.dot.gov)

<sup>102</sup> [nicb.org](https://nicb.org)

*never recovered*<sup>103</sup>. *NICB warns that similar techniques are also moving into freight dispatch*<sup>104</sup>.

Anti-fraud tools have historically focused on the shipment-tender stage (*shipment tender*), so attackers increasingly shift «downstream». Verisk CargoNet directly warns: «theft-by-deception» groups will more actively reroute cargo handed to legitimate carriers, bypassing the controls built around the tender<sup>105</sup>. The most vulnerable links are the following:

A) Load boards, as well as carrier registration and verification, are one of the main entry points for fraudsters. Verification via the SAFER system is mandatory but insufficient, since fraudsters create fake sites that may appear among the top search results<sup>106</sup>.

B) Email and dispatch-system accounts can be stolen using fake emails and other deception methods, which allows fraudsters to intercept correspondence and reroute payments<sup>107</sup>.

C) The broker's duty to handle client funds in good faith – the client's money passes through the intermediary and becomes a target<sup>108</sup>.

D) Registration of new participants. Use of fictitious addresses: FMCSA notes that the activity of illegal freight intermediaries is often associated with the absence of a real office or other actual place of business<sup>109</sup>.

E) The delivery-confirmation and payment stage (POD/payment) – the final point for withdrawing funds<sup>110</sup>.

F) Granting foreign dispatchers access to the company's internal information systems increases the risk of data leaks and abuse by employees<sup>111</sup>.

The figures should be read with a caveat about source and period. According to Verisk CargoNet's annual analysis, 3,625 incidents were recorded in the US and Canada in 2024 – 27% more than in 2023, with an average theft value of \$202,364<sup>112</sup>.

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<sup>103</sup> [cnn.com](https://www.cnn.com)

<sup>104</sup> [nicb.org](https://www.nicb.org)

<sup>105</sup> [verisk.com](https://www.verisk.com)

<sup>106</sup> [fmcsa.dot.gov](https://www.fmcsa.dot.gov)

<sup>107</sup> [nicb.org](https://www.nicb.org)

<sup>108</sup> [transportationrecovery.com](https://www.transportationrecovery.com)

<sup>109</sup> [truckinginfo.com](https://www.truckinginfo.com)

<sup>110</sup> [fmcsa.dot.gov](https://www.fmcsa.dot.gov)

<sup>111</sup> [nicb.org](https://www.nicb.org)

<sup>112</sup> [verisk.com](https://www.verisk.com)

In 2025 the total number of events remained almost the same (3,594 vs 3,607), but confirmed cargo thefts rose by 18% (from 2,243 to 2,646), estimated losses reached nearly \$725 million (+60 %), and the average value of a single theft rose by 36% – to \$273,990<sup>113</sup>. In other words, criminals began to act less often but more «expensively», shifting toward high-value cargo.

The National Insurance Crime Bureau (*citing CargoNet*) reports a 27% rise in losses in 2024 and forecasts a further increase of about 22% for 2025. Expert estimates of the real damage exceed \$1 billion per year, since some thefts are not reported<sup>114115</sup>. The share of strategic theft grew from about 8% of all cargo thefts in 2020 to about a third by the end of 2024<sup>116</sup>.



## 7. International experience in countering fraud in US logistics.

**India**, the world's largest exporter of BPO services, ensures trust in BPO through a combination of state regulation and industry self-regulation. The basis of the modern personal-data protection system is the **Digital Personal Data Protection Act 2023 (DPDP Act)** and the **Digital Personal Data Protection Rules 2025 (DPDP Rules 2025)**, adopted on 13 November 2025, which establish requirements for processing personal data, including additional obligations for «Significant Data Fiduciaries» (*Significant Data Fiduciaries, SDF*), such as appointing a data-protection officer (*Data Protection Officer, DPO*), conducting an independent audit and a data-protection impact

<sup>113</sup> [verisk.com](https://www.verisk.com)

<sup>114</sup> [nicb.org](https://www.nicb.org)

<sup>115</sup> [supplychainbrain.com](https://www.supplychainbrain.com)

<sup>116</sup> [supplychainbrain.com](https://www.supplychainbrain.com)

assessment, and also providing for administrative fines of up to about \$30 million.

Industry self-regulation also plays an important role. The **NASSCOM** association established the **Data Security Council of India (DSCI)**, which developed the framework documents **Data Security Framework (DSF)** and **Data Privacy Framework (DPF)**, widely used by BPO service providers. At the same time, the foundational acts that laid the basis for regulating information security and data protection in India remain the **Information Technology Act 2000** and the **SPDI Rules 2011**.

**The basis of the Philippines' success** as one of the world's leading BPO outsourcing hubs has been its focus on complying with international information-security and data-protection standards. About 70–75% of the industry's export revenue is generated by customers from the US, including transport-and-logistics-sector companies, which has driven high requirements for the reliability of digital infrastructure and the protection of corporate information.

The trust model is built on three complementary elements. First, to work with large foreign customers, BPO service providers, as a rule, undergo certification to international standards, primarily **ISO/IEC 27001** and **SOC 2**. Their implementation involves the use of multi-factor authentication (*MFA*), data encryption, access-rights segregation, and continuous information-security monitoring.

Second, a significant part of export BPO companies operate in special economic zones managed by the **Philippine Economic Zone Authority (PEZA)**. At the same time, comprehensive legislation on personal-data protection and countering cybercrime is in force, providing for substantial administrative and financial liability for violations of information-security requirements and unlawful data processing.

Third, the combination of international certification, state regulation, and tax incentives has made it possible to build a high level of trust among foreign customers. This facilitates the conclusion of long-term contracts and supports steady growth in the export of Philippine BPO services.

**Kazakhstan** is Uzbekistan's closest regional competitor in attracting orders for digital-services export, including from American companies. One element of building trust is the development of specialized digital products. The Kazakh startup **Call2action.ai**, a resident of **Astana Hub**, raised venture

funding to develop an AI platform for vetting, selecting, and hiring drivers, mechanics and dispatchers for the US trucking industry.

An additional factor of investment appeal is the **«Astana» International Financial Centre (AIFC)**, which operates on the principles of English common law, as well as national legislation on personal-data protection, which sets requirements for their processing and cross-border transfer.

## 8. Mechanisms for protection and winning trust

**«Verify-then-trust»** – is the gold standard of compliance and security in modern logistics, especially in the US market.

**SAFER** – the classic FMCSA database. Here you can check historical metrics and safety.

**MOTUS**: A platform launched by FMCSA in 2026 that replaced the old systems. It has introduced biometric verification and strict vetting of legal entities.

**Phishing-resistant authentication (FIDO2 / Passkeys)** – a type of protection that uses unique cryptographic keys tied to a specific physical device. These can be hardware tokens (*for example, YubiKey*) or built-in biometrics (*Windows Hello, Touch ID, Face ID*). **FIDO2** makes remote email phishing practically impossible, since the attacker does not possess the employee's physical device.

How the authentication works: access is tied to the user's physical device, which acts as a hardware key. Biometric data (*fingerprint, face scan*) or a PIN is not transmitted to the server and not stored on it; it serves solely to locally confirm the owner's identity to the device itself

**SSO (Single Sign-On)** – a technology that lets a user log in once through a central provider (for example, Microsoft Entra ID or Okta) and get secure access to all work applications without re-entering passwords.

**RMIS (Registry Monitoring Insurance Services)** – one of the leading automated platforms in the US logistics industry for onboarding (registering) freight carriers and continuously monitoring their compliance. In 2021 the service was acquired by Truckstop, one of the largest freight exchanges.

**RMM «whitelist» (Remote Monitoring and Management)** – programs through which sysadmins manage computers remotely. A «whitelist» means that only your official sysadmins can connect to the computer. Any third-party

remote-access programs (*for example, if a fraudster asks an employee to download AnyDesk or TeamViewer*) will be blocked. The employee will physically be unable to install any third-party program on the computer.

**EDR (*Endpoint Detection and Response*)** – a new-generation «smart antivirus». It monitors behavior. If an employee who usually opens one document per hour suddenly starts downloading the entire client database, EDR will consider this suspicious, block the action, and send an alert to management.

**SPF (*Sender Policy Framework*) «Guest list»** – a public list of all servers and IP addresses that you officially allow to send emails on behalf of your domain (*for example, @yourcompany.com*). When the recipient server (*for example, Gmail or your client's mail*) receives an email from you, it checks your domain's DNS records. If the sender's IP address is in your «guest list» (*SPF records*) the email is let through. If a fraudster tries to send an email from another server while spoofing your domain, the check will fail.

### **DKIM (*DomainKeys Identified Mail*)**

DKIM adds an invisible cryptographic digital signature to every outgoing email. This proves that the email was sent by you and that its content (*including attachments*) was not altered along the way. The system uses two keys. The «private key» is stored on your mail server and puts a «stamp» on every email. The «public key» you publish in the domain's DNS records. The recipient server takes your public key, checks the stamp on the email and confirms its authenticity.

### **DMARC (*Domain-based Message Authentication*)**

SPF and DKIM on their own do not tell the recipient server what to do if an email *fails* the check. DMARC combines them and gives a clear instruction: allow, send to spam, or block forgeries. In addition, DMARC sends you reports on who is trying to send emails in your name.

### **Monitoring of look-alike domains**

Fraudsters, knowing that your domain is protected by DMARC, may register a similar domain (*for example, c0mpany.com instead of company.com, or company-logistics.com*). It is necessary to use automated Threat Intelligence services (*or the built-in functions of Microsoft Defender*) that scan the global registry of new domains. As soon as someone registers a domain visually



similar to yours, the system issues a warning, and you can preemptively block it at your security gateways or file a complaint with the registrar.

### **Inbox-rules audit (*Inbox Rules Audit*)**

If a hacker does gain access to an employee's mail, their first action is to create hidden email-processing rules. The hacker sets up a rule: *«Automatically forward all incoming emails containing the words Invoice, Bank, Rate, Payment to an external address [hacker@gmail.com], and delete the original to the trash»*. This way the hacker reads the correspondence, while your employee does not even see the incoming emails from clients.

The administrator must regularly (*or automatically via scripts/SIEM*) export and check the forwarding rules of all users. In an ideal corporate environment, automatic forwarding to external addresses (*External Auto-Forwarding*) should be prohibited at the global level of the mail server.

### **Configuring SPF/DKIM/DMARC, monitoring look-alike domains, and inbox-rules audit:**

Configuring authentication protocols (*SPF, DKIM, DMARC*) provides a «digital signature» for outgoing correspondence. This prevents spoofing of the sender's address (*spoofing*): clients' mail systems will automatically recognize and block emails from attackers trying to send fake invoices in the company's name.

Implementing an automated phishing-domain tracking system. This will allow prompt detection and blocking of addresses visually similar to the corporate one (*for example, with letters replaced by digits*), from which fraudsters may contact counterparties.

A regular audit of employees' inbox rules is necessary to prevent corporate espionage. In case of hidden account compromise, attackers often set up invisible rules to auto-forward emails containing keywords (*for example, «invoice», «contract»*). A regular check will make it possible to detect and remove such settings in time.

**ISO/IEC 27001 certification** – is the highest international standard in the field of information-security management. If FIDO2, SSO, and RMIS are specific technical tools, then ISO 27001 is the fundamental architecture and corporate culture that governs these tools.

## **9. Statistics on the BPO sector in IT Park**

Services provided in the US BPO-logistics direction are growing year over year. In particular, in 2025, 25% of residents' total exports came from services provided in the BPO-logistics direction.

Whereas in 2019 the number of resident companies working in the US BPO-logistics direction was 2, today this figure has exceeded 300. The number of specialists employed in this direction has grown from 30 people to 11 thousand people. Export volume was \$2.9 million in 2019, and \$150 million in 2025. IT Park residents provide export services to 94 foreign countries, of which 45% goes to the US.

### **10. Current problems related to IT Park residents**

Recently, IT Park residents have been submitting appeals about international-level fraud (*cybercrimes, freight-transport fraud, cargo theft*) involving some citizens of Uzbekistan working in the US logistics market.

Negative articles about participants in Uzbekistan's BPO-logistics services export frequently appear on a number of US logistics forums (*Trucking Truth, Truckers, FreightBrokers, etc.*), as well as negative comments on social networks (*Overdrive, FreightWaves, etc.*).

Over 2025–2026, IT Park received reports of a total of 20 cases of fraud in the sphere of US BPO-logistics export.

***For reference:*** In November 2023, the American company «Zanda Transportation», whose founder is a citizen of Uzbekistan, failed to pay an IT Park resident \$ 360 thousand. In May 2026, the dispatcher of «Trust GIG», which served the company «Mo Globe Trucking», and a truck driver in the US caused damage worth \$ 75 thousand. As a result of hacker attacks on «BIGI STUDY» LLC, carried out in April 2026, cargo worth \$1 million was stolen.

Double-brokering schemes are widely observed among migrants from CIS countries in the US, as are cases of buying fake accounts on freight exchanges (*Load Boards*) and using others' licenses.

In addition, violations and crimes are becoming more frequent by compatriots in the US involved in the logistics chain. Numerous reports appear in the media about drivers with illegal residence status in the US, of CDLs wrongfully issued CDL to such drivers, and about the uncovering of criminal schemes for stealing goods.

***For reference:*** In early June 2026, the Federal Bureau of Investigation (FBI) and the New York police uncovered a major criminal scheme involving citizens of Uzbekistan. The criminals stole high-value products worth \$4.5 million. In July of this year, a driver from Uzbekistan was charged with attempting to destroy evidence in a fatal accident in the state of Ohio.

The above circumstances have a negative impact on IT Park residents working in the US in the BPO-logistics sphere in compliance with the law.

***For reference:*** in March 2024 the DAT platform introduced restrictions on incoming IP addresses from Serbia. It is also expected that similar blocking and the introduction of additional verification will be applied to individual countries on trading platforms.

## 11. Risks for Uzbekistan

Given the current trends in changes to the legal framework of the US road freight industry, as well as the growing number of crimes in this industry, including with the direct or indirect participation of Uzbek companies in the form of IT Park residents and compatriots, certain economic and reputational risks for Uzbekistan are emerging. Among them:

- it becoming mandatory for BPO-companies to register as a broker, thereby obliging the company to post a surety bond of \$ 75 thousand, to fall under the direct jurisdiction of FMCSA and DOJ, and to cease the current model based on dispatch contracts;
- the blocking of Uzbek IP-addresses on US freight exchange platforms;
- a reduction of Uzbekistan's logistics-services export from \$ 177,1 million in 2025 by 90% in 2026;
- a reduction of about 11 thousand jobs;
- the introduction of restrictions or additional verification requirements for Uzbek companies by major US logistics platforms such as Highway, DAT, Truckstop;
- a possible loss of trust in national IT companies and BPO services, as well as damage to Uzbekistan's reputation in the international digital-services market.

- personal criminal and reputational liability of Uzbek citizens participating in fraud schemes remotely;
- given that almost half of the exports of IT Park residents is geographically directed to the US, a crisis in BPO US logistics could significantly expose the digital-export strategy to economic and reputational risks.

## 12. Recommendation for Uzbekistan

Given the above, to reduce or fully prevent the risks and strengthen the export of BPO services, it is recommended to carry out work in the following areas:

- to create a working group of representatives of the Prosecutor General's Office, the Ministry of Internal Affairs, the Ministry of Foreign Affairs, the Ministry of Digital Technologies, the Department for Combating Economic Crimes, the Electronic Technologies Development Center, IT Park and other interested ministries and agencies to carry out systematic monitoring and analysis of fraud cases observed in the US logistics market, and to take measures to prevent them;
- to conclude a Memorandum of Understanding on practical cooperation, support, and problem-solving with the US Federal Communications Commission (*FCC*) and the Federal Motor Carrier Safety Administration of the Department of Transportation (*FMCSA*);
- to conclude a memorandum on cooperation, problem-solving and prompt information-sharing with major logistics platforms such as Highway, DAT, Truckstop, etc.;
- to organize quarterly meetings with responsible US agencies and foreign trading platforms to exchange experience and information;
- to work out the question of legal mutual-assistance mechanisms between Uzbekistan and the US for criminal cases related to cross-border fraud;
- to establish cooperation with law-enforcement agencies to take lawful measures against Uzbek citizens who remotely participated in committing transnational fraud crimes;
- for IT Park together with the Ministry of Digital Technologies to compile a unified registry of accredited providers of BPO-services for the US logistics industry based on periodic audits and mandatory certification;

- to create a database for BPO-companies with historical and current data on fraud schemes, with a registry of bad-faith counterparties and the development of industry standards directly by market participants, regulated by an association of such companies;

Under the leadership and initiative of IT Park, residents providing BPO services in the US road-logistics-supply industry are recommended to:

- implement «verify-then-trust» procedures in the form of mandatory cross-checking of counterparties' details against the SAFER and MOTUS systems;

- switch to phishing-resistant authentication (*FIDO2/passkeys*) for email, exchanges, and RMIS; introduce SSO, personal accounts, and minimal privileges;

- establish a closed working environment: RMM «whitelist», blocking of unknown installers, EDR, encryption, prohibition of personal devices;

- work strictly as a bona fide agent of the carrier under a written contract; not deal with brokers'/factoring money and not «re-broker» cargo;

- configure SPF/DKIM/DMARC, monitoring of look-alike domains and inbox-rules audit;

- obtain ISO/IEC 27001 certification (*and SOC 2 where required*); conclude data-processing agreements with customers (*DPA*); consider cyber-insurance.

